

Session and Chapter	Short title	Extent of repeal
9 & 10 Geo. 6. c. 26.	The Emergency Laws (Transitional Provisions) Act, 1946.	Section seven.
9 & 10 Geo. 6. c. 44.	The Patents and Designs Act, 1946.	Sections one, two, three and five, subsection (3) of section six, subsection (2) of section seven and subsection (4) of section eight.
11 & 12 Geo. 6. c. 10.	The Emergency Laws (Miscellaneous Provi- sions) Act, 1947.	In section five, paragraph (b) of subsection (2) and sub- section (3).
12 & 13 Geo. 6. c. 62.	The Patents and Designs Act, 1949.	The whole Act, except section forty-nine and so much of the First Schedule as amends sections eighty-two, eighty- eight and ninety-one A of the Patents and Designs Act, 1907.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Petty Sessions (Ireland) Act, 1851	14 & 15 Vict. c. 93.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Patents and Designs Act, 1907	7 Edw. 7. c. 29.
Crown Proceeding Act, 1947	10 & 11 Geo. 6. c. 44.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.

CHAPTER 89

Vehicles (Excise) Act, 1949

ARRANGEMENT OF SECTIONS

Charge of duties and rates thereof

Section

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SCHEDULES :

First Schedule.—Rates of duty on vehicles not exceeding 8 cwt. in weight unladen chargeable under section 2 of this Act.

Second Schedule.—Rates of duty on hackney carriages chargeable under section 3 of this Act.

Third Schedule.—Rates of duty on tractors, etc. chargeable under section 4 of this Act.

Fourth Schedule.—Rates of duty on goods vehicles chargeable under section 5 of this Act.

Fifth Schedule.—Rates of duty on vehicles chargeable under section 6 of this Act.

Sixth Schedule.—Temporary modifications.

Seventh Schedule.—Enactments repealed.

An Act to consolidate certain enactments relating to excise duties on mechanically propelled vehicles, and to the licensing and registration of such vehicles, with such corrections and improvements as may be authorised under the Consolidation of Enactments (Procedure) Act, 1949. [16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Charge of duties and rates thereof

1. Subject to the provisions of this Act—

Charge of
duties.

(a) there shall be charged in respect of mechanically propelled vehicles used on public roads in Great Britain the duties of excise provided by the next five following sections of this Act ; and

(b) the duty so chargeable in respect of any mechanically propelled vehicle shall be paid annually upon a licence to be taken out by the person keeping the vehicle.

2.—(1) Subject to the provisions of this section, the duty chargeable in respect of a mechanically propelled vehicle of a description specified in the first column of Part I of the First Schedule to this Act, being a vehicle which does not exceed eight hundredweight in weight unladen, shall be at the rate specified in relation to that vehicle in the second column of the said Part I: Duties on
certain vehicles
not exceeding
8 cwt. in weight
unladen.

Provided that the said Part I shall have effect subject to the provisions of Part II of the said Schedule.

(2) If a bicycle chargeable with duty under the last foregoing subsection is used for drawing a trailer or sidecar, there shall be chargeable in respect thereof duty at the rate specified in the third column of Part I of the said First Schedule, in addition to the duty chargeable under the said last foregoing subsection.

(3) Vehicles chargeable with duty under this section shall not be chargeable with duty under section three or section five of this Act.

3.—(1) Subject to the provisions of this Act, the duty chargeable in respect of a hackney carriage— Duties on
hackney
carriages.

(a) in the case of a hackney carriage being a tramcar, shall be at the rate specified in relation to such a carriage in the fourth column of the Second Schedule to this Act ;

- (b) in the case of any other hackney carriage, shall, according to the number of persons (excluding the driver) as set out in the second and third columns of the said Schedule for which the vehicle has seating capacity, be at the rate specified in relation to that number of persons in the fourth and fifth columns of that Schedule.

(2) For the purposes of this section, the seating capacity of a vehicle shall be determined in accordance with regulations made by the Minister.

Duties on
tractors, etc.

4.—(1) The duty chargeable in respect of a mechanically propelled vehicle to which this section applies shall, according to the description and weight unladen of the vehicle as set out in the first, second and third columns of the Third Schedule to this Act, be at the rate specified in relation to a vehicle of that description and weight in the fourth and fifth columns of that Schedule.

(2) This section applies to the following mechanically propelled vehicles, that is to say—

- (a) locomotive ploughing engines, tractors, agricultural tractors and other agricultural engines, which are not used on public roads for hauling any objects except as follows, that is to say—

(i) for hauling their own necessary gear, threshing appliances, farming implements, a living van for the accommodation of persons employed in connection with the vehicle, or supplies of water or fuel required for the purposes of the vehicle or for agricultural purposes ;

(ii) for hauling from one part of a farm in the occupation of the person in whose name the vehicle is registered under this Act to another part of that farm, agricultural produce of, or articles required for, the farm ;

- (b) vehicles designed, constructed and used for the purpose of trench digging or any kind of excavating or shovelling work, which—

(i) are used on public roads only for that purpose or for the purpose of proceeding to and from the place where they are to be used for that purpose ; and

(ii) when so proceeding neither carry nor haul any load other than such as is necessary for their propulsion or equipment ;

(c) vehicles designed and constructed as mobile cranes which—

(i) are used on public roads only either as cranes in connection with work being carried on on a site in the immediate vicinity or for the purpose of proceeding to and from a place where they are to be used as cranes ; and

(ii) when so proceeding neither carry nor haul any load other than such as is necessary for their propulsion or equipment ;

(d) mowing machines ;

(e) tractors, agricultural tractors and agricultural engines (other than vehicles mentioned in the foregoing paragraphs of this subsection) which—

(i) are registered under this Act in the name of a person engaged in agriculture ; and

(ii) are not used on public roads for hauling any objects except the produce of, or articles required for the purposes of, the agricultural land occupied by that person ;

(f) vehicles (other than vehicles mentioned in the foregoing paragraphs of this subsection) which are constructed and used on public roads for haulage solely and not for the purpose of carrying or having superimposed upon them any load except such as is necessary for their propulsion or equipment.

(3) Vehicles to which this section applies by virtue of paragraph (c) of the last foregoing subsection shall not be chargeable with duty under section five of this Act.

5.—(1) Subject to the provisions of this Act, the duty chargeable in respect of a goods vehicle of a description specified in the first column of Part I of the Fourth Schedule to this Act shall, according to the weight unladen of the vehicle as set out in the second and third columns of the said Part I, be at the rate specified in relation to that weight in the fourth and fifth columns of the said Part I. Duties on goods vehicles.

(2) Subject to the provisions of this Act, if a goods vehicle is used for drawing a trailer there shall be chargeable in respect thereof, according to the description and weight unladen of the vehicle as set out in the first, second and third columns of Part II of the said Fourth Schedule, duty at the rate specified in relation to a vehicle of that description and weight in the fourth column of the said Part II, and any duty chargeable under this subsection shall be in addition to the duty chargeable under the last foregoing subsection.

(3) A mechanically propelled vehicle constructed or adapted for use and used for the conveyance of a machine or contrivance and no other load except articles used in connection with the machine or contrivance shall, notwithstanding that the machine or contrivance is built in as part thereof, be chargeable with duty as a goods vehicle under this section, as if the machine or contrivance were burden and were not to be included in the weight unladen of the vehicle for the purpose of computing the amount of the duty:

Provided that nothing in this subsection shall apply to any vehicle chargeable with duty under the last foregoing section.

(4) Where a goods vehicle used for drawing a trailer has the trailer attached to it by partial super-imposition, the vehicle and trailer shall, for the purpose of determining the amount of duty chargeable under this section, be treated as if they together form a single vehicle, and the vehicle shall not be chargeable with any additional duty under subsection (2) of this section.

(5) For the purposes of this section, the expression "trailer" shall not include—

- (a) an appliance not exceeding five hundredweight in weight which is constructed and used solely for the purpose of distributing on the road loose untreated gritting material;
- (b) a snow plough;
- (c) a road construction vehicle, if the road construction machinery built in or permanently attached to the vehicle is used for no purpose other than the construction or repair of roads at the public expense;
- (d) a farming implement not constructed or adapted for the conveyance of goods or burden of any description, when drawn by a farmer's goods vehicle;
- (e) a trailer used solely for the carriage of a container for holding gas for the propulsion of the vehicle by which it is drawn, or plant and materials for producing such gas.

Duties on
vehicles not
chargeable
with duty
under sections
2 to 5.

6. The duty chargeable in respect of any mechanically propelled vehicle which is not chargeable with duty under any of the last four foregoing sections of this Act shall, according to the description of the vehicle as set out in the first column of the Fifth Schedule to this Act, be at the rate specified in relation to a vehicle of that description in the second column of that Schedule.

Exemptions from duty

7.—(1) No duty shall be chargeable under this Act in respect of any of the following mechanically propelled vehicles, that is to say—

- (a) fire engines ;
- (b) vehicles kept by a local authority while they are used for the purposes of their fire brigade service ;
- (c) ambulances ;
- (d) road rollers ;
- (e) vehicles used on tram lines, not being tramcars used for the conveyance of passengers ;
- (f) vehicles used for no purpose other than the haulage of lifeboats and the conveyance of the necessary gear of the lifeboats which are being hauled ;
- (g) vehicles (including cycles with an attachment for propelling them by mechanical power) which do not exceed five hundredweight in weight unladen and are adapted and used for invalids ;
- (h) road construction vehicles used solely for the conveyance of road construction machinery which is built in or permanently attached to the vehicle and is used for no purpose other than the construction or repair of roads at the public expense.

(2) A mechanically propelled vehicle shall not be chargeable with any duty under this Act by reason of the use thereof for clearing snow from public roads by means of a snow plough or similar contrivance, whether forming part of the vehicle or not, or for the purpose of going to or from the place where it is to be used for clearing snow from public roads by those means.

(3) The Minister may make regulations providing for the total or partial exemption for a limited period from the duty chargeable under this Act of any mechanically propelled vehicles brought into Great Britain by persons making only a temporary stay in Great Britain.

(4) If an applicant for a licence under this Act in respect of any mechanically propelled vehicle satisfies the county council that the vehicle is intended to be used on public roads—

- (a) only in passing from land in his occupation to other land in his occupation ; and
- (b) for distances not exceeding in the aggregate six miles in any calendar week ;

then, if authorised so to do by the Minister with the consent of the Treasury, the council may exempt the vehicle from the duty chargeable under this Act.

(5) If a vehicle exempted under the last foregoing subsection from the payment of duty is used on public roads otherwise than for the purpose or to the extent specified in that subsection, the vehicle shall cease to be so exempted.

Collection of duties and licensing

Duties to be
levied by
county
councils.

8.—(1) The duties chargeable under this Act shall be levied by county councils in accordance with provisions to be made for the purpose by Order in Council.

(2) Subject to the provisions of this Act and of any Order in Council made under this section, every county council and their officers shall have within their county for the purpose of levying the duties aforesaid the same powers, duties and liabilities as the Commissioners of Customs and Excise and their officers have with respect to duties of excise, and to the issue and cancellation of licences on which duties of excise are imposed, and other matters under the Acts relating to duties of excise and excise licences, and all enactments relating to those duties and to punishments and penalties in connection therewith shall apply accordingly.

(3) Every county council shall, subject to the provisions of any Order in Council made under this section, have with respect to the said duties and licences the powers given by the said Acts to the Treasury for the restoration of any forfeiture and the mitigation or remission of any penalty or any part thereof.

(4) The duties levied by a county council under this section shall be paid into the Exchequer in such manner and in accordance with such directions as may be contained in any Order in Council made under this section.

(5) Provision may be made by Order in Council under this section for enabling the Minister to give such directions to county councils as he thinks necessary for securing uniformity of administration and otherwise for carrying the provisions of this Act and of any such Order into effect, and it shall be the duty of county councils to comply with any directions so given.

(6) Any Order in Council made under this section may be revoked, varied or amended by a subsequent Order so made.

Issue and
exhibition of
licences.

9.—(1) Every person applying for a licence under this Act shall make such a declaration and furnish such particulars with respect to the mechanically propelled vehicle for which the licence is to be taken out or otherwise as may be prescribed; and if any person in connection with an application for such a licence makes a declaration which to his knowledge is false or in any material respect misleading, he shall be liable on summary conviction to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

(2) Subject to the provisions of this Act relating to trade licences—

- (a) every licence issued under this Act shall be issued in respect of the vehicle specified in the application for the licence and shall not entitle the person to whom it is issued to use any other vehicle ; and
- (b) a county council shall not be required to issue any licence for which application is made unless they are satisfied—
 - (i) that the licence applied for is the appropriate licence for the vehicle specified in the application ; and
 - (ii) in the case of an application for a licence for a vehicle purporting to be the first application for a licence in respect of the vehicle, that a licence has not previously been issued in respect of that vehicle.

(3) Subject as may be prescribed, every licence issued under this Act in respect of a mechanically propelled vehicle shall be fixed to and exhibited on the vehicle in the prescribed manner.

(4) The Minister may make regulations providing for the issue of new licences in the place of licences which may be lost or destroyed, and for the fee (not exceeding five shillings) to be paid on the issue of a new licence.

(5) Notwithstanding anything in the provisions of the Acts relating to excise licences, and without prejudice to those provisions, any licence issued under this Act in respect of a mechanically propelled vehicle may be transferred in the prescribed manner.

10.—(1) If any person being a motor trader makes in the prescribed manner to the council of the county in which his business premises are situated an application to take out a licence under this section in respect of all mechanically propelled vehicles used by him (in this Act referred to as a “trade licence”), in lieu of taking out a licence in respect of each mechanically propelled vehicle kept by him, the county council may, subject to the prescribed conditions, issue to him a trade licence on payment of duty at such rate as is hereafter in this section provided :

Provided that the holder of a trade licence shall not be entitled by virtue of that licence—

- (a) to use more than one vehicle at any one time, except in the case of a vehicle drawing a trailer and used for the prescribed purpose ; or
- (b) to use any vehicle for any purpose other than such purposes as may be prescribed.

(2) Two sets of regulations shall be made under this section prescribing the conditions subject to which trade licences are to be issued, and prescribing the purposes for which the holder of a trade licence may use it ; and—

(a) a licence to which the one set of regulations applies is hereafter in this Act referred to as a “general trade licence” ; and

(b) a licence to which the other set of regulations applies is hereafter in this Act referred to as a “limited trade licence” ;

and it shall be at the option of every motor trader wishing to take out a trade licence whether the licence shall be a general trade licence or a limited trade licence.

(3) Where a general trade licence is taken out, the annual rate of duty shall be twenty-five pounds or, in the case of a licence to be used only for vehicles chargeable with duty under section two of this Act, five pounds.

(4) Where a limited trade licence is taken out, the annual rate of duty shall be five pounds or, in the case of a licence to be used only for vehicles chargeable with duty under the said section two, one pound.

(5) Nothing in this section shall operate to prevent a person entitled to take out a trade licence from holding two or more such licences.

(6) If any person is aggrieved by the refusal of a county council to issue a trade licence, he may appeal to the Minister, and the Minister shall, on any such appeal, make such order in the matter as he thinks just, and the council shall comply with any order so made.

(7) Any order made by the Minister under the last foregoing subsection shall be final and not subject to appeal to any court, and shall be enforceable in England by order of mandamus on the application of the Minister, and in Scotland by order of the Court of Session on the application of the Lord Advocate.

(8) For the purposes of this section the expression “motor trader” means a manufacturer or repairer of, or dealer in, mechanically propelled vehicles.

Licences for
less than a
year.

11.—(1) The following provisions of this section shall have effect notwithstanding anything in paragraph (b) of section one of this Act.

(2) A licence in respect of a mechanically propelled vehicle, not being a tramcar or a vehicle mentioned in paragraph (a), (b), (c) or (d) of subsection (2) of section four of this Act, may be taken out for such periods of the year and on payment of duty

at such rates as the Minister may by order made by statutory instrument prescribe:

Provided that—

- (a) every rate of duty prescribed under this section in respect of a licence taken out for any vehicle for any period of the year shall be such as to bear to the full annual duty chargeable in respect of that vehicle no less proportion than the period for which the licence is taken out bears to a year; and
- (b) the rate of duty so prescribed in respect of a licence taken out for any vehicle for one quarter of the year only shall not exceed thirty per cent. of the full annual duty.

(3) The minimum period prescribed by order under the last foregoing subsection may be shorter in the case of vehicles to which this subsection applies than in the case of other vehicles.

This subsection applies to goods vehicles which—

- (a) are authorised to be used on roads by virtue of an order made under section three of the Road Traffic Act, 1930; and
- (b) exceed such weight (not being less than eleven tons) as may be prescribed by order made under the last foregoing subsection.

(4) Where a person begins to use a tramcar on or after the first day of October in any year, he shall, on delivering a declaration in writing signed by him to that effect, be entitled to take out a licence for that vehicle on payment of one half of the full annual duty.

(5) A general trade licence may be taken out for one quarter of the year only, and in the case of any licence so taken out the duty shall be twenty-seven and one half per cent. of the full annual duty.

(6) In this section the expression “quarter” means any of the following parts of a year, namely, the period beginning with the first day of January and ending with the twenty-fourth day of March, the period beginning with the twenty-fifth day of March and ending with the thirtieth day of June, the three months beginning with the first day of July, and the three months beginning with the first day of October.

12.—(1) The holder of a licence issued under this Act (other than a limited trade licence or a licence for a tramcar) may at any time surrender the licence to the county council with which the vehicle for which the licence was taken out is for the time being registered, or, in the case of a general trade licence, to the county council by which the licence was issued. Surrender of licences.

(2) Where a licence is surrendered to a county council under the foregoing provisions of this section, the holder thereof shall be entitled to be repaid by the council by way of rebate of the duty paid for the licence the following amount in respect of each complete month of the period of the currency of the licence which is unexpired at the date of the surrender, that is to say—

(a) in the case of a licence taken out for one quarter of a year only or for any less period, a sum equal to one-third of the duty chargeable on such a licence taken out for one quarter of the year ;

(b) in the case of a licence of any other class, an amount equal to one-twelfth of the full annual duty chargeable on the licence.

(3) For the purposes of this section the month of March shall be deemed to end with the twenty-fourth day of that month, and the month of April shall be deemed to begin with the twenty-fifth day of March.

(4) In making repayments under this section fractions of a penny shall be disregarded.

Alteration of
vehicle or use
thereof.

13.—(1) Subject to the provisions of this section, where a licence has been taken out in respect of a mechanically propelled vehicle at any rate under this Act and the vehicle is at any time while the licence is in force used in an altered condition or in a manner or for a purpose which brings it within, or which if it was used solely in that condition or in that manner or for that purpose would bring it within, a class or description of vehicle to which a higher rate of duty is applicable under this Act, duty at that higher rate shall become chargeable in respect of the licence for the vehicle, and the licence may be exchanged for a new licence, for the period beginning with the date on which the higher rate of duty becomes chargeable and expiring at the end of the period for which the original licence was issued, on payment of the difference between—

(a) the amount payable under this Act on a licence taken out for the said period at the previous rate of duty ; and

(b) the amount payable under this Act on a licence taken out for the said period at the higher rate of duty.

(2) Where a licence has been taken out in respect of a mechanically propelled vehicle, and by virtue of such user as aforesaid a higher rate of duty becomes chargeable and duty at the higher rate was not paid before the vehicle was so used, the person so using the vehicle shall be liable to whichever is the greater of the following penalties, namely—

(a) an excise penalty of twenty pounds ; or

- (b) an excise penalty of an amount equal to three times the difference between the duty actually paid on the licence and the amount of duty at that higher rate.

(3) Where a licence has been taken out in respect of a mechanically propelled vehicle of a certain class or description, duty at a higher rate applicable to mechanically propelled vehicles of some other class or description shall not become chargeable in respect of the vehicle by reason of any such user of the vehicle as is mentioned in subsection (1) of this section, unless the vehicle as used while the said licence is in force satisfies all the conditions which must be satisfied in order to bring the vehicle for the purposes of the charge of duty under this Act into the said other class or description of vehicles.

(4) Where duty has been paid in respect of a vehicle under section five of this Act, then, so long as the vehicle in respect of which duty has been paid is to a substantial extent being used for the conveyance of goods or burden belonging to a particular person (whether the person keeping the vehicle or not) duty at a higher rate shall not become chargeable in respect of that vehicle by reason only that it is used for the conveyance without charge in the course of their employment of employees of the person aforesaid.

(5) Where duty has been paid under section five of this Act in respect of a vehicle as being a farmer's goods vehicle, duty at a higher rate shall not become chargeable in respect of the vehicle by reason only that, on an occasion when the vehicle is being used by the person in whose name it is registered for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies, it is also used for the conveyance for some other person engaged in agriculture of the produce of, or of articles required for the purposes of, the agricultural land occupied by that other person, if it is shown—

- (a) that the vehicle is so used only occasionally ;
- (b) that the goods conveyed for that other person represent only a small proportion of the total amount of goods which the vehicle is conveying on that occasion ;
- (c) that no payment or reward of any kind is, or is agreed to be, made or given for the conveyance of the goods of that other person.

14.—(1) Where the amount of the duty which has been paid on a licence in respect of a mechanically propelled vehicle is less than the amount payable on the licence appropriate to that vehicle—

Recovery of
under-
payments and
over-payments
of duty.

- (a) the amount of the deficiency shall be a debt due to the county council with which the vehicle is for the time being registered ; and

(b) that council may take proceedings for the recovery of that amount at any time before the expiration of the year next following the year in respect of which, or of part of which, the licence was taken out.

(2) No proceedings shall be brought for enforcing any repayment of duty to which a person may be entitled in respect of any over-payment of duty made on a licence taken out by him in respect of a mechanically propelled vehicle, unless the proceedings are brought before the expiration of the year next following the year in respect of which, or of part of which, the licence was taken out.

Penalty for
using vehicles
without licence.

15.—(1) If any person uses on a public road any mechanically propelled vehicle for which a licence under this Act is not in force, not being a vehicle exempted from duty under section seven of this Act, or if any person who is the holder of a trade licence or trade licences issued under this Act uses on a public road at any one time a greater number of vehicles than he is authorised to use by virtue of that licence or those licences, he shall be liable to whichever is the greater of the following penalties, namely—

(a) an excise penalty of twenty pounds ; or

(b) an excise penalty equal to three times the amount of the duty chargeable in respect of the vehicle or vehicles.

(2) Proceedings for a penalty under the last foregoing subsection may be brought at any time within a period of twelve months from the date on which the offence was committed.

(3) Where it is alleged that a mechanically propelled vehicle has been used in contravention of the foregoing provisions of this section—

(a) the owner of the vehicle shall give such information as he may be required by or on behalf of a chief officer of police or a county council to give as to the identity of the driver and of any person using the vehicle and, if he fails to do so, shall be guilty of an offence under this subsection, unless he shows to the satisfaction of the court that he did not know and could not with reasonable diligence have ascertained who was driving or using the vehicle ; and

(b) any other person shall, if required as aforesaid, give any information which it is in his power to give and which may lead to the identification of the driver or of any person using the vehicle, and, if he fails to do so, he shall be guilty of an offence under this subsection.

(4) A person guilty of an offence under the last foregoing subsection shall be liable on summary conviction to a fine not exceeding twenty pounds.

Registration and identity marks

16.—(1) On the first issue of a licence under this Act for a Registration. mechanically propelled vehicle, it shall be the duty of the county council issuing the licence to register the vehicle in the prescribed manner without any further application in that behalf by the person taking out the licence and to assign to the vehicle a registration mark indicating the registered number of the vehicle and the council which has registered it.

(2) The Minister may make regulations with respect to the registration of mechanically propelled vehicles and, in particular—

- (a) requiring county councils to make the prescribed returns with respect to mechanically propelled vehicles registered with them, and for making any particulars contained in the register available for use by the prescribed persons ; and
- (b) requiring any person to whom any mechanically propelled vehicle is sold or disposed of to furnish the prescribed particulars in the prescribed manner ; and
- (c) providing for the issue of registration books in respect of the registration of any mechanically propelled vehicle, and for the surrender and production, and the inspection by the prescribed persons, of any books so issued ; and
- (d) providing for the issue of new registration books in the place of any such books which may be lost or destroyed, and for the fee (not exceeding five shillings) to be paid on the issue of a new registration book ; and
- (e) prescribing the form of, and the particulars to be included in, the register of trade licences.

(3) The Motor Car (International Circulation) Act, 1909 (which provides for modifying the provisions of the Motor Car Act, 1903, relating to the registration of motor cars in the case of motor cars brought temporarily into the United Kingdom) shall have effect as if references therein to the Motor Car Act, 1903, included references to this Act.

(4) If any person who is required by virtue of this Act to furnish particulars in connection with a change of the registration of any vehicle furnishes any particulars which to his knowledge are false or in any material respect misleading, he shall be liable on summary conviction to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

17.—(1) The registration mark assigned to a mechanically propelled vehicle in accordance with the last foregoing section shall be fixed on the vehicle, or on any other vehicle drawn by that vehicle, or on both, in the prescribed manner. Registration marks.

(2) The Minister may make regulations—

- (a) providing for the assignment of a general registration mark to a person holding a trade licence issued under this Act ; and
- (b) prescribing the size, shape and character of the registration marks to be fixed on any vehicle, and the manner in which those marks are to be displayed and rendered easily distinguishable, whether by night or by day.

Distinctive
signs for
hackney
carriages.

18.—(1) There shall, subject to the prescribed exceptions, be exhibited on every mechanically propelled vehicle which is chargeable with duty as a hackney carriage, in conjunction with the mark required under the last foregoing section to be fixed on the vehicle, a distinctive sign indicating—

- (a) that the vehicle is a hackney carriage ; and
- (b) the number of persons for which the vehicle has seating capacity.

(2) Regulations made by the Minister shall provide for such signs to be exhibited as aforesaid and may prescribe the size, shape and character of those signs, and the manner in which the signs are to be displayed and rendered easily distinguishable, whether by night or by day.

Penalties for
not fixing or
obscuring
marks and
signs.

19.—(1) If any mark or sign to be fixed on a vehicle in accordance with either of the last two foregoing sections is not so fixed, the person driving the vehicle shall be guilty of an offence under this section :

Provided that it shall be a defence for a person charged under this subsection with failing to fix a mark, to prove that he had no reasonable opportunity of registering the vehicle under this Act and that the vehicle was being driven on a public road for the purpose of being so registered.

(2) If any mark or sign fixed on a vehicle as aforesaid is in any way obscured or rendered or allowed to become not easily distinguishable, the person driving the vehicle shall be guilty of an offence under this section :

Provided that it shall be a defence for a person charged with such an offence to prove that he took all steps reasonably practicable to prevent the mark or sign being obscured or rendered not easily distinguishable.

(3) Any person guilty of an offence under this section shall be liable on summary conviction—

- (a) in respect of the first offence, to a penalty not exceeding twenty pounds ;
- (b) in respect of a second or subsequent offence, to a penalty not exceeding fifty pounds.

20. The Minister may make regulations—Registration of
non-dutiable
vehicles.

- (a) extending any provisions as to registration, and provisions incidental to any such provisions, to any mechanically propelled vehicles in respect of which duty is not chargeable under this Act (including vehicles belonging to the Crown); and
- (b) providing for the identification of any such vehicles.

Miscellaneous and general

21. If any person forges, or fraudulently alters or uses, or fraudulently lends or allows to be used by any other person— Penalty for forgery, etc.

- (a) any mark or sign to be fixed on a mechanically propelled vehicle in accordance with section seventeen or section eighteen of this Act; or
- (b) any licence or registration book under this Act;

he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

22. If in any proceedings under subsection (1) of section nine, subsection (1) of section fifteen or subsection (4) of section sixteen of this Act any question arises— Burden of proof in certain proceedings.

- (a) as to the number of mechanically propelled vehicles used; or
- (b) as to the character, weight, horse-power or cylinder capacity of any mechanically propelled vehicle; or
- (c) as to the number of persons for which a mechanically propelled vehicle has seating capacity; or
- (d) as to the purpose for which any mechanically propelled vehicle has been used;

the burden of proof in respect of the matter in question shall lie on the defendant.

23. All penalties and forfeitures recovered under or in pursuance of this Act, whether by a county council or by any other person, shall be paid into the Exchequer in such manner and in accordance with such directions as may be contained in any Order in Council made under this Act. Application of penalties.

24.—(1) There shall be paid out of moneys provided by Parliament in every year— Expenses.

- (a) to every county council by whom the duties under this Act are levied, an amount equal to the expenses properly incurred by that council, in accordance with directions issued by the Minister with the approval

of the Treasury, in or in connection with the levying of the duties and the registration of vehicles under this Act;

- (b) to every local or police authority, such sum as the Minister, with the approval of the Treasury, may determine to represent the amount which would, if the Roads Act, 1920, had not been passed, have been received by the authority on account of fees or charges for the licensing of mechanically propelled hackney carriages, not being public service vehicles within the meaning of the Road Traffic Act, 1930;
- (c) any expenses incurred by any government department in connection with the collection of the said duties or otherwise in the administration of this Act.

(2) The directions issued under paragraph (a) of the last foregoing subsection may provide for advances being made to county councils from time to time as may be necessary during the year on account of the expenses referred to in that paragraph.

Regulations.

25.—(1) The Minister may make regulations generally for the purpose of carrying this Act into effect and in particular, without prejudice to the generality of the foregoing provision, for prescribing any matter which is to be prescribed under this Act.

(2) Any power to make regulations conferred by this Act on the Minister shall be exercisable by statutory instrument which, except in the case of a statutory instrument containing only regulations made under subsection (3) of section seven or subsection (7) of section twenty-six of this Act, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) County councils shall comply with any regulations made by the Minister under this Act.

(4) If any person acts in contravention of, or fails to comply with, any regulations made under this Act, he shall, for each offence, be liable on summary conviction to a penalty not exceeding twenty pounds.

**Computation
of weight of
vehicles, etc.**

26.—(1) Subject to the provisions of this section, the weight unladen of any mechanically propelled vehicle shall, for the purposes of this Act, be taken to be the weight of the vehicle inclusive of the body and all parts (the heavier being taken where alternative bodies or parts are used) which are necessary to or ordinarily used with the vehicle when working on a road, but exclusive of the weight of water, fuel or accumulators used for the purpose of the supply of power for the propulsion of the vehicle, and of loose tools and loose equipment.

(2) In computing for the purposes of section five of this Act the weight unladen of a goods vehicle, there shall be included the weight of any receptacle, being an additional body, placed on the vehicle for the purpose of the carriage of goods or burden of any description, if any goods or burden are loaded into, carried in and unloaded from the receptacle without the receptacle being removed from the vehicle:

Provided that the weight of a receptacle shall not be included in the weight unladen of a goods vehicle by virtue of this subsection—

- (a) unless the receptacle is placed on the vehicle by or on behalf of the person in whose name the vehicle is registered under this Act ; or
- (b) if the receptacle is constructed or adapted for the purpose of being lifted on or off the vehicle with goods or burden contained therein and is from time to time actually used for that purpose in the ordinary course of business ; or
- (c) if the receptacle is specially constructed or specially adapted for carrying livestock and is used solely for that purpose.

(3) If any question arises under paragraph (b) of the proviso to the last foregoing subsection whether any receptacle is from time to time actually used for the purpose therein mentioned in the ordinary course of business, the receptacle shall be deemed not to be so used until the contrary is shown.

(4) For the purposes of paragraph (c) of the proviso to subsection (2) of this section, a receptacle shall not be deemed to be used otherwise than solely for carrying livestock by reason that, on a journey the main purpose of which is the carrying of livestock or on the way to the loading point or while returning from the discharging point on such a journey, the vehicle is used for carrying agricultural produce or agricultural requisites.

(5) For the purposes of sections four and five of this Act, the weight unladen of a mechanically propelled vehicle shall not be taken to include the weight of a contrivance attached thereto, being a contrivance designed or adapted for the purpose of enabling the vehicle to tow or be towed:

Provided that in computing the weight unladen of a vehicle there shall not, by virtue of this subsection, be excluded the weight of a contrivance attached to the rear of a vehicle chargeable with duty under section four of this Act or of a vehicle chargeable with duty under section five of this Act and used for drawing a trailer, or, in any event, an amount exceeding—

- (a) where a contrivance, the weight of which falls to be excluded, is attached to one end only of the vehicle, one hundredweight ;

(b) where such a contrivance is attached to each end of the vehicle, two hundredweight.

(6) In computing for the purpose of section five of this Act the weight unladen of a goods vehicle which carries a container for holding gas for the propulsion of the vehicle, or plant for producing such gas, the weight unladen of the vehicle shall be reduced—

(a) where the weight unladen exceeds twelve hundredweight but does not exceed three tons, by half a ton ;

(b) where the weight unladen exceeds three tons but does not exceed six tons, by three-quarters of a ton ;

(c) where the weight unladen exceeds six tons, by one ton.

(7) The unit of horsepower or cylinder capacity for the purpose of any rate of duty under this Act shall be calculated in accordance with regulations made by the Minister.

Interpretation. 27.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“bicycle” includes a motor scooter and a bicycle with an attachment for propelling it by mechanical power ;

“county” includes a county borough, and the expression “county council” shall be construed accordingly ;

“electricity undertaking” means an undertaking for supplying electricity or for supplying light by means of electricity ;

“electric transport undertaking” means an undertaking for supplying transport by means of electrically propelled vehicles ;

“farmer’s goods vehicle” means a goods vehicle registered under this Act in the name of a person engaged in agriculture and used on public roads solely by him for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies, and for no other purpose ;

“gas”, except for the purpose of the definition of “tower wagon” and “gas undertaking”, means any fuel which is wholly gaseous at a temperature of sixty degrees Fahrenheit under a pressure of thirty inches of mercury ;

“gas undertaking” means an undertaking for supplying gas or for supplying light by means of gas ;

- “goods vehicle” means a mechanically propelled vehicle (including a tricycle weighing more than eight hundred-weight unladen) constructed or adapted for use and used for the conveyance of goods or burden of any description, whether in the course of trade or otherwise ;
- “hackney carriage” means a mechanically propelled vehicle standing or plying for hire, and includes any mechanically propelled vehicle let for hire by a person whose trade it is to sell mechanically propelled vehicles or to let mechanically propelled vehicles for hire, provided that the vehicle is not let for a period amounting to three months or more ;
- “local authority’s watering vehicle” means a goods vehicle used solely within the area of a local authority by that local authority, or by any person acting in pursuance of a contract with that local authority, for the purpose of cleansing or watering roads or cleansing gulleys ;
- “the Minister” means the Minister of Transport ;
- “police authority” includes the receiver for the metropolitan police district ;
- “prescribed” means prescribed by regulations made by the Minister under this Act ;
- “public road” means a road which is repairable at the public expense ;
- “road construction machinery” means a machine or contrivance suitable for use for the construction or repair of roads ;
- “road construction vehicle” means a vehicle constructed or adapted for use for the conveyance of road construction machinery built in as part of the vehicle or otherwise permanently attached thereto, and not constructed or adapted for the conveyance of any other load except articles and material used for the purposes of the road construction machinery ;
- “showman’s goods vehicle” means a showman’s vehicle which is a goods vehicle and is permanently fitted with a living van or some other special type of body or superstructure, forming part of the equipment of the show of the person in whose name the vehicle is registered under this Act ;
- “showman’s trailer” means a trailer drawn by a showman’s goods vehicle and used solely for the purposes of his business by the person in whose name the vehicle is registered under this Act ;

“ showman’s vehicle ” means a vehicle registered under this Act in the name of a person following the business of a travelling showman and used solely by him for the purposes of his business and for no other purpose ;

“ tower wagon ” means a goods vehicle—

(a) which is used for the purposes of an electricity undertaking, gas undertaking or electric transport undertaking, and for no other purpose ; and

(b) into which there is built, as part of the vehicle, a telescopic contrivance designed for facilitating the erection, inspection, repair or maintenance of overhead structures or equipment ; and

(c) which is neither constructed nor adapted for use nor used for the conveyance of any load, except such a contrivance and articles used in connection therewith ;

“ trade licence ”, “ general trade licence ”, and “ limited trade licence ” have the meanings assigned to them by section ten of this Act ;

“ tricycle ” includes a motor scooter and a tricycle with an attachment for propelling it by mechanical power.

(2) A mechanically propelled vehicle shall not be deemed to be an electrically propelled vehicle within the meaning of this Act unless the electrical motive power is derived either from a source external to the vehicle or from any electrical storage battery which is not connected to any source of power when the vehicle is in motion.

Application to
Scotland.

28. In the application of this Act to Scotland, references to a county shall, except in this section, be deemed to include references to a burgh within the meaning of the Local Government (Scotland) Act, 1947, containing a population according to the census for the time being last taken of or exceeding fifty thousand, and every other burgh shall be deemed to form part of the county within which it is situated, and the expression “ county council ” shall be construed accordingly.

Temporary
modifications
of Act.

29. The foregoing provisions of this Act shall have effect subject to the modifications set out in the Sixth Schedule to this Act, being modifications which are temporary in duration.

Repeals and
savings.

30.—(1) The enactments specified in the first and second columns of the Seventh Schedule to this Act are hereby repealed to the extent specified in relation thereto in the third column of that Schedule.

(2) Every Order in Council, order or regulation made or licence issued under any enactment repealed by this Act shall, if in force at the commencement of this Act, continue in force and have effect as if made or issued under the corresponding provision of this Act.

(3) Any register kept or vehicle registered under the Roads Act, 1920, shall be deemed to have been kept or registered under this Act, and any number or identification mark assigned to a vehicle under the Roads Act, 1920, or under the Motor Car Act, 1903, shall, if it was the registered number or the proper mark for the vehicle at the commencement of this Act, be deemed to have been assigned to the vehicle under this Act.

(4) In subsection (7) of section two of the Finance Act, 1935, as amended by section eight of the Finance Act, 1942, and section eight of the Finance Act, 1947, the reference to subparagraphs (a), (b), (bb), and (c) of paragraph 4 of the Second Schedule to the Finance Act, 1920, shall be construed as a reference to paragraphs (a), (b), (c) and (d) of subsection (2) of section four of this Act, and, so long as the said section eight of the Finance Act, 1942, is in force, the reference in the said subsection (7) to subparagraph (d) of the said paragraph 4 shall be construed as a reference to paragraph (e) of the said subsection (2).

(5) Any document referring to any enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(6) Nothing in this Act shall require any fee or charge to be paid which would not have been payable if this Act had not been passed.

(7) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

31.—(1) This Act may be cited as the Vehicles (Excise) Act, 1949.

Short title,
extent and
commence-
ment.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and fifty.

SCHEDULES

Section 2.

FIRST SCHEDULE

RATES OF DUTY ON VEHICLES NOT EXCEEDING 8 CWT. IN WEIGHT
UNLADEN CHARGEABLE UNDER SECTION 2 OF THIS ACT

PART I

General rates of duty

Description of vehicle	Rate of Duty	
	Initial	Additional if used for drawing trailer or side-car
	£ s. d.	£ s. d.
1. Bicycles (other than bicycles which are electrically propelled) of which the cylinder capacity of the engine—		
(a) does not exceed 150 cubic centimetres...	17 6	1 5 0
(b) exceeds 150 cubic centimetres but does not exceed 250 cubic centimetres ...	1 17 6	1 5 0
(c) exceeds 250 cubic centimetres ...	3 15 0	1 5 0
2. Bicycles which are electrically propelled ...	17 6	1 5 0
3. Tricycles neither constructed nor adapted for use nor used for the carriage of a driver or passenger	2 0 0	—
4. Other tricycles	5 0 0	—
5. Vehicles other than mowing machines, being vehicles with more than three wheels neither constructed nor adapted for use nor used for the carriage of a driver or passenger ...	3 0 0	—

PART II

Reduced duty on certain bicycles

Where the cylinder capacity of the engine of a bicycle exceeds two hundred and fifty cubic centimetres and the bicycle—

- (a) is one in respect of which a licence was taken out before the first day of January, nineteen hundred and thirty-three; and
- (b) does not exceed two hundred and twenty-four pounds in weight unladen;

the bicycle shall be treated, for the purpose of Part I of this Schedule, as if the cylinder capacity of the engine thereof did not exceed two hundred and fifty cubic centimetres but exceeded one hundred and fifty cubic centimetres.

SECOND SCHEDULE

Section 3.

RATES OF DUTY ON HACKNEY CARRIAGES CHARGEABLE UNDER
SECTION 3 OF THIS ACT

1. Description of vehicle	Seating capacity of vehicle		Rate of duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each person in excess of the number in column 2
			£ s. d.	£ s. d.
1. Hackneycarriages being tramcars	—	—	15 0	—
2. Other hackney carriages.	— 4 persons 8 persons 26 persons 32 persons	4 persons 8 persons 26 persons 32 persons —	10 0 0 12 0 0 12 0 0 48 0 0 57 12 0	— — 2 0 0 1 12 0 1 4 0

Section 4.

THIRD SCHEDULE

RATES OF DUTY ON TRACTORS, ETC., CHARGEABLE UNDER
SECTION 4 OF THIS ACT

1. Description of vehicle	Weight unladen of vehicle		Rate of duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each ton or part of a ton in excess of the weight in column 2
			£ s. d.	£ s. d.
1. Vehicles mentioned in section 4 (2) (a) of this Act.	—	—	5 0	—
2. Vehicles mentioned in section 4 (2) (b) of this Act.	—	—	5 0	—
3. Vehicles mentioned in section 4 (2) (c) of this Act.	—	—	5 0	—
4. Vehicles mentioned in section 4 (2) (d) of this Act.	—	—	5 0	—
5. Vehicles mentioned in section 4 (2) (e) of this Act.	— 5 tons 10 tons	5 tons 10 tons —	12 0 0 20 0 0 20 0 0	— — 2 0 0
6. Vehicles mentioned in section 4 (2) (f) of this Act, other than showmen's vehicles.	— 2 tons 4 tons 6 tons 7½ tons 8 tons	2 tons 4 tons 6 tons 7½ tons 8 tons —	25 0 0 40 0 0 55 0 0 70 0 0 85 0 0 85 0 0	— — — — — 15 0 0
7. Vehicles mentioned in section 4 (2) (f) of this Act, being showmen's vehicles.	— 7½ tons 8 tons 10 tons	7½ tons 8 tons 10 tons —	25 0 0 30 0 0 35 0 0 35 0 0	— — — 5 0 0

FOURTH SCHEDULE

Section 5.

RATES OF DUTY ON GOODS VEHICLES CHARGEABLE UNDER
SECTION 5 OF THIS ACT

PART I

General Rates of Duty

1. Description of vehicle	Weight unladen of vehicle		Rate of Duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each $\frac{1}{2}$ ton or part of a $\frac{1}{2}$ ton in excess of the weight in column 2
			£ s. d.	£ s. d.
1. Electrically propelled goods vehicles, including tower wagons whether electrically propelled or not but not including farmers' goods vehicles, showmen's goods vehicles or local authorities' watering vehicles.	— 12 cwt. 16 cwt. 1 ton 2 tons 3 tons 6 tons	12 cwt. 16 cwt. 1 ton 2 tons 3 tons 6 tons —	10 0 0 12 10 0 15 0 0 15 0 0 20 0 0 30 0 0 45 0 0	— — — 1 5 0 2 10 0 1 5 0 2 10 0
2. Goods vehicles which are propelled by steam or are constructed or adapted to use gas as fuel, other than farmers' goods vehicles, showmen's goods vehicles or local authorities' watering vehicles.	— 12 cwt. 16 cwt. 1 ton 3 tons 4 tons 6 tons	12 cwt. 16 cwt. 1 ton 3 tons 4 tons 6 tons —	10 0 0 12 10 0 15 0 0 15 0 0 35 0 0 50 0 0 90 0 0	— — — 2 10 0 3 15 0 5 0 0 3 15 0
3. Farmers' goods vehicles.	— 12 cwt. 16 cwt. 1 ton $2\frac{1}{2}$ tons 3 tons	12 cwt. 16 cwt. 1 ton $2\frac{1}{2}$ tons 3 tons —	10 0 0 10 10 0 11 0 0 11 0 0 14 0 0 16 0 0	— — — 10 0 1 0 0 10 0
4. Showmen's goods vehicles.	— 12 cwt. 16 cwt. 1 ton	12 cwt. 16 cwt. 1 ton —	10 0 0 11 0 0 12 0 0 12 0 0	— — — 1 0 0
5. Local authorities' watering vehicles which are electrically propelled.	— $1\frac{1}{2}$ tons 2 tons 3 tons 4 tons 5 tons	$1\frac{1}{2}$ tons 2 tons 3 tons 4 tons 5 tons —	6 0 0 6 0 0 13 0 0 16 0 0 19 4 0 24 0 0	— 2 6 8 15 0 16 0 12 0 —

4TH SCH.
—cont.

1. Description of vehicle	Weight unladen of vehicle		Rate of Duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each $\frac{1}{2}$ ton or part of a $\frac{1}{2}$ ton in excess of the weight in column 2
6. Local authorities' watering vehicles which are not electrically propelled.	—	12 cwt.	£ s. d. 10 0 0	£ s. d. —
	12 cwt.	16 cwt.	12 10 0	—
	16 cwt.	1 ton	15 0 0	—
	1 ton	2 tons	15 0 0	2 10 0
	2 tons	2½ tons	25 0 0	1 10 0
	2½ tons	3 tons	28 0 0	2 0 0
	3 tons	4 tons	32 0 0	1 12 0
	4 tons	5 tons	38 8 0	1 4 0
	5 tons	—	48 0 0	—
7. Goods vehicles not included in any of the foregoing provisions of this Part of this Schedule.	—	12 cwt.	10 0 0	—
	12 cwt.	16 cwt.	12 10 0	—
	16 cwt.	1 ton	15 0 0	—
	1 ton	3 tons	15 0 0	2 10 0
	3 tons	4 tons	35 0 0	3 15 0
	4 tons	—	50 0 0	5 0 0

PART II

Rates of Duty on Goods Vehicles used for Drawing Trailers

1. Description of vehicle	Weight unladen of vehicle		4. Rate of duty
	2. Exceeding	3. Not exceeding	
1. Showmen's goods vehicles used for drawing showmen's trailers ...			£ s. d.
	—	—	10 0 0
2. Local authorities' watering vehicles ...	—	—	6 0 0
3. Other goods vehicles...	—	2½ tons	10 0 0
	2½ tons	4 tons	15 0 0
	4 tons	—	20 0 0

FIFTH SCHEDULE

Section 6.

RATES OF DUTY ON VEHICLES CHARGEABLE UNDER SECTION 6
OF THIS ACT

Description of Vehicle	Rate of Duty
1. Electrically propelled vehicles	£ s. d. 7 10 0
2. Other vehicles—	
(a) If registered under the Roads Act, 1920, for the first time before the first day of January, nineteen hundred and forty-seven—	
(i) Not exceeding 6 horse-power ...	7 10 0
(ii) Exceeding 6 horse-power—For each unit or part of a unit of horse-power	1 5 0
(b) If registered under the Roads Act, 1920, or this Act, on or after that day	10 0 0

SIXTH SCHEDULE

Section 29.

TEMPORARY MODIFICATIONS

1.—(1) Section four of this Act shall in relation to the use on public roads, before the first day of July nineteen hundred and fifty, of a locomotive ploughing engine, tractor, agricultural tractor, or other agricultural engine (being a tractor or engine registered under this Act in the name of a person engaged in agriculture or of a registered agricultural contractor and used primarily for work on land in connection with agriculture) have effect as if for sub-paragraph (ii) of paragraph (a) of subsection (2) thereof there were substituted the following sub-paragraph—

“(ii) for hauling agricultural produce of, or articles required for, any farm or market garden”.

(2) In this paragraph the expression “registered agricultural contractor” means a person registered under the Agricultural Contractors (Registration and Control) Orders, 1940, or the Agricultural Contractors (Registration and Control) (Scotland) Order, 1941.

(3) The reference in subsection (4) of section thirty of this Act to paragraph (a) of subsection (2) of section four of this Act shall, in relation to the vehicles and the period mentioned in sub-paragraph (1) of this paragraph, be construed as a reference to the said paragraph (a) as amended by this paragraph.

Relief from duty
for agricultural
engines, etc.

6TH SCH.
—cont.
Relief from duty
for farmer's
goods vehicle.

2.—(1) Where duty has been paid under subsection (1) of section five of this Act in respect of a vehicle as being a farmer's goods vehicle, duty at a higher rate shall not become chargeable in respect of that vehicle by reason only that, during such periods and in such areas as may be specified by order of the Treasury made by statutory instrument, it is used, whether by the person in whose name it is registered under this Act or not, for any such purpose as is specified in the order.

(2) An order under this paragraph may be revoked or varied by a subsequent order of the Treasury.

(3) This paragraph shall continue in force until such date as His Majesty may by Order in Council determine.

Exemption from
duty in respect
of trailers used
for refuse
collection by
local authorities
and their
contractors.

3.—(1) A vehicle shall not be chargeable with duty under subsection (2) of section five of this Act by reason of the use thereof, before such date as His Majesty may by Order in Council determine, by a local authority for drawing trailers used solely in connection with the collection and disposal of refuse,

(2) The last foregoing sub-paragraph shall apply in relation to the use of a vehicle by any person for the purpose of performing a contract with a local authority as it applies in relation to the use of a vehicle by a local authority.

Partial remission
of duty
chargeable under
ss. 2 and 6 of
this Act.

4.—(1) Where, before such date as may be specified by order of the Treasury, a licence under this Act is issued in respect of either—

- (a) a vehicle, being a bicycle or a tricycle, which is chargeable with duty under section two of this Act, and which is not constructed or adapted to use as fuel any fuel other than light oils; or
- (b) a vehicle chargeable with duty under section six of this Act, which is not constructed or adapted to use as fuel any fuel other than light oils,

and the condition specified in sub-paragraph (2) of this paragraph is fulfilled, the licence shall be issued on payment of half only of the duty chargeable and the other half of the duty chargeable shall be remitted, but a licence so issued shall become void on that condition ceasing to be fulfilled.

(2) The said condition is that either—

- (a) no coupons, except standard ration coupons, have been issued in respect of the vehicle to the person in whose name it is registered under this Act; or
- (b) it is certified by a person authorised in that behalf by the Minister of Fuel and Power that every coupon so issued, other than a standard ration coupon, has been delivered up unused to that Minister in accordance with the orders of that Minister for the time being in force in respect of the control of motor fuel; or
- (c) the period of validity of every coupon so issued, other than a standard ration coupon or a coupon so certified as aforesaid to have been so delivered up unused, has expired:

Provided that where—

6TH SCH.
—cont.

- (i) coupons other than standard ration coupons have been so issued for any period; and
- (ii) it is certified by a person authorised as aforesaid that some of those coupons have been delivered up unused as aforesaid before the expiration of that period,

the period of validity of all those coupons shall be treated for the purposes of this paragraph (but not for any other purpose) as expiring on such date as may be specified in the certificate, being the date by which so much only of that period remains as bears to the whole thereof the same proportion as the number of units of fuel covered by the coupons which are delivered up unused bears to the number of units of fuel which were covered by all the said coupons.

(3) On the surrender of a licence in respect of which there has been a remission of duty under this paragraph, the repayment of duty, if any, falling to be made under section twelve of this Act shall be computed by reference to the duty chargeable as diminished by the amount of the remission.

(4) In this paragraph the expressions "coupon" and "standard ration coupon" have the same meanings as for the purposes of the orders of the Minister of Fuel and Power from time to time in force in respect of the control of motor fuel and the expression "light oils" has the meaning assigned to it by subsection (3) of section two of the Finance Act, 1928.

SEVENTH SCHEDULE

ENACTMENTS REPEALED

Section 30.

Session and Chapter	Short title	Extent of Repeal
10 & 11 Geo. 5. c. 18.	The Finance Act, 1920	Section thirteen and the Second Schedule.
10 & 11 Geo. 5. c. 72.	The Roads Act, 1920	Section one; in paragraph (a) of subsection (4) of section three the words "the levying of the duties, the registration of vehicles, and" and paragraphs (b) and (e) of that subsection; sections five and six; subsection (8) of section seven; sections eight, nine, eleven, twelve and thirteen; subsection (1) of section fourteen; and in section seventeen the definition of "prescribed" and "police authority".

7TH SCH.
—cont.

Session and Chapter	Short title	Extent of Repeal
11 & 12 Geo. 5. c. 32.	The Finance Act, 1921	Section twenty-two.
12 & 13 Geo. 5. c. 17.	The Finance Act, 1922	Sections fourteen and fifteen.
14 & 15 Geo. 5. c. 21.	The Finance Act, 1924	Section eighteen.
16 & 17 Geo. 5. c. 22.	The Finance Act, 1926	Sections thirteen and fourteen and the First Schedule.
17 & 18 Geo. 5. c. 10.	The Finance Act, 1927	Sections eleven and twelve and the Fourth Schedule.
20 & 21 Geo. 5. c. 28.	The Finance Act, 1930	Section six.
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930	Section eighty-nine.
21 & 22 Geo. 5. c. 28.	The Finance Act, 1931	Sections two and four.
22 & 23 Geo. 5. c. 25.	The Finance Act, 1932	Section fourteen.
23 & 24 Geo. 5. c. 19.	The Finance Act, 1933	Sections twenty-five and twenty-six and the Seventh Schedule.
24 & 25 Geo. 5. c. 32.	The Finance Act, 1934	Section eighteen and the Third Schedule.
25 & 26 Geo. 5. c. 24.	The Finance Act, 1935	Sections three and four.
26 Geo. 5 & 1 Edw. 8. c. 34.	The Finance Act, 1936	Sections nine to thirteen, and paragraphs 2 and 4 of Part I of the Third Schedule.
1 Edw. 8 & 1 Geo. 6. c. 54.	The Finance Act, 1937	Sections seven to nine.
2 & 3 Geo. 6. c. 41.	The Finance Act, 1939	Sections nine and ten and the Eighth Schedule.
3 & 4 Geo. 6. c. 6.	The Gas and Steam Vehicles (Excise Duties) Act, 1940	The whole Act.
3 & 4 Geo. 6. c. 29.	The Finance Act, 1940	Sections nine and ten.
6 & 7 Geo. 6. c. 28.	The Finance Act, 1943	Sections seven to ten.
9 & 10 Geo. 6. c. 13.	The Finance (No. 2) Act, 1945	Section four; paragraphs (a) and (b) of subsection (2) of section five; section six; and the Second Schedule.
9 & 10 Geo. 6. c. 64.	The Finance Act, 1946	Section fourteen and the Second Schedule.
10 & 11 Geo. 6. c. 35.	The Finance Act, 1947	Subsections (1), (2) and (4) of section eight, and section nine.
11 & 12 Geo. 6. c. 49.	The Finance Act, 1948	Sections eighteen and nineteen.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Motor Car Act, 1903	3 Edw. 7. c. 36.
Motor Car (International Circulation) Act, 1909 ...	9 Edw. 7. c. 37.
Finance Act, 1920	10 & 11 Geo. 5. c. 18.
Roads Act, 1920	10 & 11 Geo. 5. c. 72.
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
Finance Act, 1935	25 & 26 Geo. 5. c. 24.
Finance Act, 1942	5 & 6 Geo. 6. c. 21.
Finance Act, 1947	10 & 11 Geo. 6. c. 35.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.

CHAPTER 90

Election Commissioners Act, 1949

ARRANGEMENT OF SECTIONS

Appointment of and inquiry by election commissioners

Section *

1. Appointment of election commissioners.
2. Declaration to be made by commissioners.
3. Meetings of commissioners.
4. Scope and area of inquiries.
5. Witnesses.
6. Proceedings for contempt, etc.

Reports and consequences thereof

7. Reports by election commissioners.
8. Appeals by persons reported guilty of corrupt or illegal practices.
9. Incapacities on report by election commissioners of corrupt or illegal practice.
10. Disciplinary action on report of corrupt practice.

Financial

11. Appointment of secretary and staff.
12. Remuneration of commissioners.
13. Expenses of the inquiry.

Supplemental

14. Protection of commissioners.
 15. Rules of procedure.
 16. Provisions as to Director of public prosecutions.
 17. Service of notices.
 18. Computation of time.
 19. Interpretation.
 20. Saving for Northern Ireland.
 21. Repeal and savings.
 22. Short title, citation and commencement.
- Schedule.—Repeals.